

Form No.HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

ICA No. 8938 of 2019

Punjab Board of Technical Education
vs
Zulfiqar Ahmad Cheema & 2 others

S.No. of. Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
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17.04.2019 Mr. Nasir Mehmood, Advocate for appellant/department
Respondent in person.

Through this Intra Court Appeal, the appellant/department has called in question the order dated 17.12.2018 passed by learned Single Judge in Chambers, whereby the constitutional petition filed by the respondent was disposed of with a direction to the appellant to release the financial benefits of the respondent for the intervening period without further delay.

2. The brief facts of the case are that the respondent was reinstated in service by judgment of this Court dated 10.03.2014 passed in WP No. 19313 of 2011 in which a direction was issued to the appellant to hold fresh inquiry against the respondent whreafter he was charge sheeted and exonerated. The said judgment was assailed by the appellant in the Hon'ble Supreme Court of Pakistan by

filing CP No.1377 of 2014 which was dismissed on 04.09.2014. Thereafter the respondent being aggrieved of non-payment of his back benefits for intervening period filed another constitutional petition which was disposed of by learned Single Judge in Chambers through impugned order which is under challenge by filing instant appeal.

3. Learned counsel for the appellant has argued that the impugned order has been passed in a hasty manner without appreciating the real controversy in issue and in order to claim back benefits the respondent was required to prove that he had not been gainfully employed during the period he remained out of service.

4. Conversely, the respondent, who has appeared in person, has defended the impugned order by stating that he had never refused to attend the office rather it was the appellant who was not permitting him to join office.

5. **Heard.** Record perused.

6. Perusal of record shows that the respondent was working as System Analyst in BS-18 with the appellant department and in December-2009 in response to an advertisement for the post of Chairman of the appellant, he applied for the said post whereafter he was issued

charge sheet on 04.03.2011 and suspended, however, on 17.03.2010 the said order of suspension was withdrawn. In May-2010 the appellant advertised for the post of Secretary of the appellant and the respondent again applied for the same and was again suspended on 17.09.2010 and charge sheet was issued to him and was subsequently terminated from service on 20.05.2011 which order was called in question through WP No.19313 of 2011 and this Court vide order dated 10.03.2014 set-aside the termination order by holding that the appellant is not precluded to hold fresh inquiry against the respondent. The appellant challenged the said order through CP No.1377 of 2014 which was dismissed by the Hon'ble Supreme Court on 04.09.2014. The appellant department again held fresh inquiry and exonerated the respondent from charges on 19.11.2015 but held that status of the respondent for intervening period between 17.09.2010 to 14.05.2014 will be decided in due course of time. Thereafter the respondent filed WP No.214595 of 2018 for release of back benefits for intervening period which was allowed by the learned Single Judge in Chambers by holding that as the respondent has been honourably acquitted he would be

considered to be on duty during intervening period. The said finding of the learned Single in Chambers is in accordance with the judgment of the Supreme Court reported as Chairman State Life Insurance Corporation, Karachi and others vs. Siddique Akbar (2013 SCMR 752) which judgment is also binding on this Division Bench as well. Consequently, we have no reason to differ with the order passed by the learned Single Judge in Chambers.

7. As regards the claim of the appellant that respondent in order to claim back benefits was required to show that during the intervening period, he was not gainfully employed elsewhere. Suffice it to say that the appellant itself suspended the respondent before terminating his services and did not permit him to attend the office whereas he had himself not specifically refused to attend, therefore, he would be entitled to the benefits of intervening period and no exception can be taken to the same by requiring him to show that he was not gainfully employed elsewhere especially when the appellant department has failed to point out any place where the respondent had been working during the intervening period.

8. For what has been discussed above, this appeal being devoid of any merit is *dismissed*.

(Muhammad Sajid Mehmood Sethi) (Muzamir Akhtar Shabir)
Judge Judge

Naveed *